

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIT RINDHE,	)	Case Number: FDI-23-797993
Petitioner	)	Hearing Date: May 19, 2026
VS.	)	Hearing Time: 9:00 AM
ISHA SINGH,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER : MOTION TO STAY ENFORCEMENT OF OCTOBER 2, 2025 ORDER
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On 5/1/2023, Petitioner Amit Rindhe filed a Petition to dissolve his marriage to Respondent Isha Singh. Petitioner stated the parties married on 7/7/2022 and separated on 3/31/2023 for a marriage of 8 months. The parties have no minor children.
- 2) On 6/5/2023, Respondent Isha Singh filed a Response and Request for Dissolution of Marriage wherein she agreed to the facts alleged in the Petition.
- 3) On 7/25/2024, Petitioner filed an Amended Petition, now requesting an annulment on the basis of bigamy.
- 4) On 8/9/2024, Respondent filed a second Response and Request for Dissolution of Marriage.
- 5) Following a long-cause hearing on 12/2/2024, Judge Costin found that Respondent had entered a valid marriage in India to a third party that had not been dissolved at the time Respondent entered into a second marriage with Petitioner in California. Judge Costin found that Respondent's marriage to Petitioner is null and void. Judge Costin also found Petitioner to be a putative spouse. Putative spouse status was not granted to Respondent.

- 1 6) On 2/13/2025, a Nullity Judgment was entered.
- 2 7) At a hearing on 9/19/2025 (Findings and Order After Hearing filed 10/2/2025), Judge Costin
- 3 ordered Respondent to pay Petitioner \$75,000 in attorney's fees sanctions and \$13,366.76 in
- 4 reimbursements for jewelry purchased during marriage and for quasi-marital property items
- 5 purchased during marriage, for a total of \$88,367.67 owed by Respondent to Petitioner, to be paid
- 6 to Petitioner's attorney no later than 12/15/2025. Judge Costin stated in her order, "The Court
- 7 finds that \$75,000 in sanctions does not impose an unreasonable financial burden on Mr. Singh
- 8 based on her Income and Expense Declaration file dated 7/1/25 wherein indicates she has
- 9 \$400,000 in easily saleable funds. At the hearing on 9/19/25, Ms. Singh testified this amount
- 10 remains accurate." Judge Costin also noted in her order: "[F]ollowing a long-cause hearing, the
- 11 Court found that Mr. Rindhe believed in good faith that the marriage was valid, and that Ms.
- 12 Singh did not have such a good faith belief. At the long-cause hearing, and again through her
- 13 7/1/25 declaration filed herein, Ms. Singh repeatedly asserted under oath that she was mistaken
- 14 about the status of her marriage in India and that she did not sign documents that contain her
- 15 signature. The Court did not find Ms. Singh's testimony in that regard to be credible at trial and
- 16 does not find those assertions credible now. There was overwhelming evidence presented at trial
- 17 that Ms. Singh was still married to her husband in India as of 7/7/22 when she married Mr.
- 18 Rindhe. Ms. Singh's insistence on litigating this matter through trial despite that overwhelming
- 19 evidence resulted in both parties incurring substantial attorney's fees without good cause."
- 20 8) On 3/9/2026, the Court of Appeal filed a Certification Notice stating that "the Clerk's
- 21 transcript... and Reporter's transcripts... on appeal have been completed and certified to the
- 22 Court of Appeal." This pertains to Appellate Case No. A175107 wherein Respondent is appealing
- 23 the Findings and Order After Hearing filed 10/2/2025.
- 24 9) **DV Action:** The Court notes that on 4/24/2023 in related Case No. 4/24/2023, Ms. Singh filed a
- 25 Request for Domestic Violence Restraining Order (DVRO) for protection against Mr. Rindhe. A
- 26 Temporary Restraining Order (TRO) was granted for Ms. Singh's protection on 4/24/2023. The
- 27 hearing on Ms. Singh's Request for a DVRO has been continued many times. At the most recent
- 28 hearing on 12/12/2024, Judge Costin noted there is a Criminal Protective Order for Ms. Singh's
- 29 protection against Mr. Rindhe that was issued on 11/7/2024 and is set to expire on 11/7/2027. The

1 parties agreed to continue the hearing date and to maintain the Domestic Violence TRO to
2 10/1/2027, a date just prior to the expiration of the Criminal Protective Order.

3 10) **Criminal Action:** The Court also notes that in August 2024, a jury convicted Mr. Rindhe of
4 seven counts of rape by force, two counts of making criminal threats, and one count of domestic
5 abuse. Mr. Rindhe was sentenced to 21 years in prison. On 11/13/2024, Mr. Rindhe filed a notice
6 of appeal (Case No. A172053) to challenge the criminal conviction. That appeal remains pending.

7 11) **Civil Action:** The Court further notes that on 8/5/2025, Ms. Singh filed a civil action against Mr.
8 Rindhe wherein Ms. Singh is seeking damages for domestic violence, assault, battery, intentional
9 or reckless or negligent infliction of severe emotional distress; sexual battery; gender violence;
10 civil rights violations; negligence; and conspiracy. The matter is currently set for a jury trial on
11 8/3/2026. There is also a hearing set for 6/9/2026 on Mr. Rindhe's motion to stay the proceedings
12 pending the outcome of Mr. Rindhe's appeal of his criminal conviction.

13 12) On 12/3/2025, Respondent filed an ex parte Request for Order and Memorandum of Points and
14 Authorities in this action asking the Court to stay enforcement of the 10/2/2025 order requiring
15 her to pay Petitioner \$88,367.67 under Code of Civil Procedure section 918.5 "pending the
16 outcome of all litigation between Petitioner and me." Respondent argues she will likely prevail in
17 her Request for DVRO and civil action against Petitioner. Respondent believes she will be
18 entitled to damages of more than \$100,000 in the civil case. Respondent also believes she will be
19 entitled to at least \$10,000 in attorney's fees as a prevailing party under Family Code section
20 6344 in the DV action. Respondent states she will be unlikely to collect from Petitioner if the stay
21 of execution is not granted. Respondent states that Petitioner's Income and Expense Declaration
22 shows that Petitioner will not be able to satisfy any judgments in the two pending matters,
23 although Respondent also disputes the veracity of Petitioner's Income and Expense Declaration.
24 Respondent also argues that because Petitioner is in custody and serving a 21-year sentence, there
25 is "no urgency or hardship to him if enforcement is stayed pending the outcome of the appeal and
26 the other matters."

27 13) On 12/3/2025, Petitioner filed a Responsive Declaration and Memorandum of Points and
28 Authorities asking the Court to deny Respondent's request for a stay of enforcement because
29 Respondent's arguments are "speculative" and "not based on immediate risk of harm."

1 14) On 12/3/2025, this Court issued a Temporary Emergency Ex Parte Order and set the matter for
2 hearing on 12/30/2025. The Court's order states: "Request for stay granted only pending hearing
3 on this matter... This is not an emergency... The Court reserves jurisdiction to order FC 271
4 sanctions at the hearing. The parties are to brief (limited to 5 pages) the applicability of CCP
5 918.5 and 918.5(b) factors, to be filed and served 10 days before the hearing."

6 15) The parties previously agreed to continue the 12/30/2025 hearing to 2/10/2026.

7 16) On 12/15/2025, Petitioner filed a second Responsive Declaration and Memorandum of Points and
8 Authorities. Petitioner states that the parties agreed to continue the 12/30/2025 hearing to
9 2/10/2026 due to Petitioner's counsel's unavailability. Petitioner states, "Almost immediately
10 after counsel for Petitioner had faxed a joint letter to the calendar clerk requesting the February
11 10, 2026 date, counsel for Petitioner was notified by Respondent's counsel that Respondent
12 would not be available on February 10, 2026 due to a 'work commitment' and requested that the
13 hearing be continued to March. Petitioner does not agree to another delay caused by Respondent."
14 Petitioner argues that Code of Civil Procedure section 918.5 does not apply because Respondent
15 has not yet filed a Request for Order for attorney's fees in any amount in the DV action and
16 Respondent alleged in her civil complaint that she will be seeking leave of Court to amend her
17 complaint for damages / fees once the amount is ascertained.

18 17) On 12/15/2025, Petitioner's attorney filed a declaration requesting \$10,000 in attorney's fees
19 sanctions for having to file a response to Respondent's 12/3/2025 ex parte Request for Order
20 when there was no emergency.

21 18) On 1/30/2026, Petitioner filed a Brief Re Applicability of CCP 918.5 and 918.5(b). Petitioner
22 argues again that there are no pending actions that support Respondent's theory because there is
23 no pending request for fees in the DV action and Respondent has not yet amended her complaint
24 to seek monetary damages in the civil action. Petitioner also argues that the likelihood of
25 Respondent prevailing in securing monetary awards against him is "speculative at best" and
26 Respondent has not specified the amounts she is seeking in those actions.

27 19) On 2/3/2026, Respondent filed a Request to Reschedule Hearing asking the Court to reschedule
28 the 2/10/2026 hearing because Respondent's father died unexpectedly on 1/18/2026 in India and
29 she needed to remain in India to be with her family.

1 20) On 2/4/2026, the Court granted Respondent's request, continued the 2/10/2026 hearing to
2 5/19/2026, and extended the stay of enforcement of the 10/2/2025 order to 5/19/2026.

3 21) On 5/4/2026, Petitioner filed a third Responsive Declaration asking the Court to deny
4 Respondent's request for a stay of enforcement of the 10/2/2025 order.

5 22) On 5/12/2026, Respondent filed a Reply Declaration arguing that although she has not specified
6 amounts for prevailing party attorney's fees in the DV action or for monetary awards in the civil
7 action, that does not mean that she does not have pending monetary claims in those actions.
8 Respondent argues that given the criminal convictions against Petitioner, it is reasonable for the
9 Court to find that there is a high likelihood of success for Respondent to prevail in the DV and
10 civil actions.

11 23) On 5/14/2026, Respondent filed a second Request to Reschedule Hearing asking the Court to
12 reschedule the 5/19/2026 hearing to a date after 8/31/2026 because her health is impeding her
13 ability to participate in the litigation. Respondent attached letters from various doctors who state,
14 "Due to her current medical and psychological condition, she is not able to meaningfully
15 participate in court proceedings for approximately the next 3 months."

16 24) On 5/15/2026, Petitioner filed a Responsive Declaration asking the Court to deny Respondent's
17 request for a continuance.

18 25) On 5/18/2026, Respondent filed Objections to Petitioner's Responsive Declaration to Request to
19 Reschedule Hearing objecting to the entirety of Paragraph 6 on hearsay grounds.

20 26) On 5/18/2026, Respondent filed a Declaration in Support of Objections and Sanctions.

21 Respondent states that soon after she arrived in India in January 2006 she was attacked by Sumit
22 Bharti (Respondent's previous husband) and suffered physical and mental trauma. Respondent
23 states Petitioner informed Sumit Bharti that she would be in India due to her father's death.

24 Respondent states, "My stress is related to the trauma I have suffered from the conduct of
25 Petitioner, including his ongoing conduct of informing Mr. Bharti I was in India which resulted in
26 me being attacked in India when I traveled there for my father's death."

27 27) On 5/18/2026, Respondent's attorney Kathleen Morgan filed a Declaration. Respondent's
28 attorney states she will be filing a separate Request for Order seeking sanctions related to
29 discovery requests served by Petitioner which seek information that could be used to locate

Respondent in violation of the Temporary Restraining Order. Respondent's attorney asks that the Court permit her sanction request to be heard concurrently with the current Request for Order seeking a stay.

B. Findings and Order

- 1) Although the Court is sympathetic to Respondent's condition, Respondent is the one who filed the pending request for stay of enforcement of the Court's 10/2/2025 order and the request has been pending for over 5 months, despite the Court's original intention to grant the stay in December 2025 on a temporary basis pending a hearing in February 2026. Respondent's request for a continuance of the 5/19/2026 hearing is denied.
- 2) The Court finds good cause to grant a stay of enforcement of the Court's 10/2/2025 order requiring Respondent to pay Petitioner's attorney \$88,367.67 pending final Judgment in the pending DV and civil actions.
- 3) The Court finds a stay is warranted under Code of Civil Procedure sections 916 (because an appeal of the underlying order is currently pending) and 918.5. Under Code of Civil Procedure section 918.5(b), the Court finds: (a) there is sufficient likelihood Respondent will prevail in the pending DV and civil actions to warrant a stay, (b) if Respondent prevails in the DV and civil actions her monetary recovery will likely be comparable to or exceed the amount awarded in the Court's 10/2/2025 order, and (c) Petitioner stated in his most recent Income and Expense Declaration filed 4/29/2025 that he has no income and "minimal" assets.
- 4) However, the Court also finds good cause to require Respondent to provide an undertaking under Code of Civil Procedure sections 917.1 and 918. No later than Friday, 5/29/2026 at 5:00 PM, Respondent shall deliver to Room 402 a cashier's check made out to San Francisco Superior Court in the amount of \$88,367.67 to be held in an interest-bearing account by the Court. The Court will make a determination at a later date regarding which party should receive the principal and any interest accrued on this sum. The Court sets a review hearing for **Thursday, 6/25/2026 at 9:00 AM in Dept. 404** on the limited issue of reviewing Respondent's compliance with this order. Respondent shall file and serve a declaration at least 5 calendar days in advance of this hearing date regarding her compliance with this order. The Court will consider no other briefing filed by either party regarding this issue.

- 1 5) Petitioner's request for Family Code section 271 attorney's fees sanctions for responding to
2 Respondent's ex parte request for a stay is denied.
- 3 6) Respondent's attorney request that the Court permit her discovery-related sanctions request to be
4 heard concurrently with the current Request for Order seeking a stay is denied because the Court
5 is denying Respondent's request for a continuance and the next hearing date is only being set for
6 a very limited issue.
- 7 7) Respondent's objection to Paragraph 6 in Petitioner's Responsive Declaration to Request to
8 Reschedule Hearing filed 5/15/2026 is sustained. The Court agrees with Respondent that the
9 following sentence is inadmissible hearsay: "The court in India did not believe her and she is now
10 facing criminal charges in India."
- 11 8) Respondent's attorney shall prepare the Findings and Order After Hearing.
- 12 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
13 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
14 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
15 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
16 proposed order after hearing directly to the court. Failure to submit the order after hearing within
17 10 days may allow the other party to prepare a proposed order and submit it to the court in
18 accordance with CA Rules of Court, Rule 5.125(d).
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